

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202402539	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/06/2023 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/6/2025	Precinct: 120		
Date/Time CV Reported Wed, 03/13/2024 10:37 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/13/2024 10:37 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Richard Browne	04237	950113	NBSI MAJOR
2. Officers			
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Brittany Cardinale	01546	961669	NARC SI
2. SGT DS Paul Dieugenia	02713	946929	NARC SI

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b) in Staten Island.	A . Within NYPD Guidelines
B . Officers	Abuse: Officers searched § 87(2)(b) in Staten Island.	B . Within NYPD Guidelines
C . Officers	Abuse: Officers drew their guns.	C . Within NYPD Guidelines
D . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	D . Unable to Determine
E . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	E . Unable to Determine
F . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	F . Unable to Determine
G . DT3 Richard Browne	Abuse: Detective Richard Browne refused to show the search warrant to § 87(2)(b)	G . Unable to Determine
H . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	H . Officer(s) Unidentified

Case Summary

On March 13, 2024, § 87(2)(b) called the CCRB and filed this complaint.

On September 6, 2023, at approximately 7:00 AM, § 87(2)(b) was at home, located at § 87(2)(b) in Staten Island, with his roommates, § 87(2)(b) and § 87(2)(b). Multiple officers, including Detective Richard Browne of the Staten Island Narcotics Bureau, entered the home with their guns drawn and conducted a search of the premises (**Allegations A-C: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) and § 87(2)(b) all requested that officers show them a search warrant which they allegedly refused to do (**Allegations D, E, F, and G: Abuse of Authority, Unable to determine**). During the search of the home, § 87(2)(b) allegedly observed an officer break several glass cabinet doors (**Allegation H: Abuse of Authority, Officer(s) Unidentified**). § 87(2)(b) and § 87(2)(b) were all arrested for § 87(2)(a) and § 87(2)(b) and stated these charges have since been dismissed. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

A request for Body Worn Camera footage to the NYPD was returned with negative results. None of the officers present during the incident were equipped with Body Worn Cameras (BWC). There is no video evidence in this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Officers entered § 87(2)(b), in Staten Island.

Allegation B – Abuse of Authority: Officers searched § 87(2)(b), in Staten Island.

Allegation C – Abuse of Authority: Officers drew their guns.

Allegation D - Detective Richard Browne refused to show the search warrant to § 87(2)(b).

Allegation E - Detective Richard Browne refused to show the search warrant to § 87(2)(b).

Allegation F - Detective Richard Browne refused to show the search warrant to § 87(2)(b).

Allegation G - Detective Richard Browne refused to show the search warrant to § 87(2)(b).

§ 87(2)(b) stated that on September 9, 2023, at approximately 7:00 AM, he was at his home, located at § 87(2)(b) in Staten Island. § 87(2)(b) lives on the second floor with his brothers, § 87(2)(b) and § 87(2)(b) and his friend § 87(2)(b) who lives in the attic. § 87(2)(b) was in the kitchen when he heard banging on the front door of the house. § 87(2)(b) did not know who was at the door and stated that everyone in the home has “women problems,” so nobody went to open the door. The banging continued for approximately one minute before officers broke down the front door and proceeded up the stairwell. Officers banged on the second-floor entrance and identified themselves as warrant squad officers and stated that they had a warrant. § 87(2)(b) opened the front door and Det. Browne, and multiple other officers, entered the apartment.

Det. Browne entered the kitchen and ordered § 87(2)(b) to get on the ground, which he did. The officers handcuffed the other residents and had them wait with § 87(2)(b) while they searched the entire apartment. § 87(2)(b) clarified that officers first entered and searched his room. From where he was seated in the kitchen, § 87(2)(b) could see officers enter his room, but could not see where they searched. However, when § 87(2)(b) returned home following the incident, everything in his room was “open.” Specifically, his dresser drawers and closet door were open,

and his clothes were on the ground. His bed was also flipped over. The officers also searched § 87(2)(b) and § 87(2)(b)'s rooms, though when asked whether he saw this occur, § 87(2)(b) would only say these rooms were searched. Officers ultimately recovered approximately 16 bags of cocaine, totaling 2-3 grams, from the bathroom toilet. The officers then brought the residents out to the police vehicles one at a time with § 87(2)(b) being brought out first. Prior to being taken outside, § 87(2)(b) stated that he, § 87(2)(b) and § 87(2)(b) all asked the officers to see a warrant. Det. Browne showed § 87(2)(b) a long white piece of paper he claimed was a warrant. However, Det. Browne only gave § 87(2)(b) a glimpse of the paper, which appeared to only have two or three words on it. § 87(2)(b) was therefore unable to verify whether the document was a warrant. § 87(2)(b) did not see any officer show any other resident a warrant. § 87(2)(b) was charged with § 87(2)(a) 160.50

§ 87(2)(g). The officers told § 87(2)(b) and § 87(2)(b) that they had a search warrant which would be shown to them later. § 87(2)(b) asked two of the officers to show the search warrant. They responded that the search warrant was not for him, it was for § 87(2)(b). No officer showed § 87(2)(b) or § 87(2)(b) a warrant or any other kind of documentation. § 87(2)(b) did not know whether § 87(2)(b) or § 87(2)(b) asked to see a warrant while they were at the location (BR 02).

§ 87(2)(b)'s statement § 87(2)(g). Approximately seven officers entered the attic with their guns drawn. § 87(2)(b) was unable to provide descriptions of the officers as they were wearing helmets and carrying shields. Officers handcuffed § 87(2)(b) and § 87(2)(b) and looked around the attic but did not search anything. § 87(2)(b) and § 87(2)(b) both asked an officer to show them a search warrant. The officer responded that there was a warrant, though he could not show it to them at that moment. Officers escorted § 87(2)(b) and § 87(2)(b) downstairs to the second floor. § 87(2)(b) and § 87(2)(b) had already been taken outside and put in a police vehicle. § 87(2)(b) observed that his door, which had been locked prior to the officers arriving, had been opened. § 87(2)(b) heard drawers opening in his room, but was unable to see inside the room, and did not know specifically where officers searched. When § 87(2)(b) returned home after the incident, he stated that his clothes had been removed from his dresser and "everything had been turned over." § 87(2)(b) observed officers in § 87(2)(b) and § 87(2)(b) rooms but did not see their faces (BR 03).

§ 87(2)(b) declined to be formally interviewed, though he answered several questions over the phone regarding the incident. § 87(2)(b) stated that approximately eight officers entered the apartment without a warrant. During the incident, § 87(2)(b) asked all eight officers to see a warrant, though none of them showed him one. One of the officers stated that the search warrant was left on one of his roommate's beds, though he never saw it (BR 04).

Det. Browne was interviewed on September 3, 2024, approximately one year after the incident. Det. Browne stated he obtained a search warrant for § 87(2)(b)'s home § 87(2)(e), § 87(2)(f). Det. Browne and 10 to 12 other additional officers executed the search warrant, which required them to forcibly enter the front door of § 87(2)(b)'s 2nd floor apartment. Det. Browne initially stated that he did not know who else was present during the incident, though he later acknowledged that Det. Brittany Cardinale and Sgt. Paul Dieugenio were there. Det. Browne was the first to enter the apartment and was the only officer with a copy of the search warrant. The officers had their firearms drawn when they entered the apartment, as per procedure. The officers cleared the apartment and handcuffed § 87(2)(b) and his roommates. Det. Browne did not recall having any conversation with § 87(2)(b) or any

of the other residents. He did not recall whether they asked him any questions or requested to see the warrant. He was not aware of any of the residents asking the other officers present to see a warrant. Det. Browne showed the warrant to § 87(2)(b) and the other three residents while they were all together on the second floor. Det. Browne described the warrant as being printed on a normal white sheet of 8x11 paper. Det. Browne did not know how long he held the warrant in front of § 87(2)(b) but stated that it was long enough for § 87(2)(b) and the other residents, to discern it was a warrant. Det. Browne stated that he was only obligated to show § 87(2)(b) the warrant as he was the only one named on it. He showed the warrant to the other residents as a courtesy, but did not recall them requesting that he do so (BR 05).

Confirmation of a no-knock search warrant was obtained from the NYPD for § 87(2)(b) home. The objective of the warrant is listed as narcotics (BR 06).

Article 690.50 of the New York State Criminal Procedure Law permits officers who have obtained a valid judge-issued search warrant to enter and search the location (BR 07).

As per NYPD Patrol Guide Procedure 221-01, the decision to draw a firearm should be based on an articulable belief that the potential for serious physical injury is present (BR 08).

§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **Unable to Determine**.

§ 87(2)(g) As such, it is recommended that **Allegations E, F, and G** be closed as **Unable to Determine**.

Allegation H – Abuse of Authority: An officer damaged § 87(2)(b)'s property.

§ 87(2)(b) stated that during the search of the home, an officer used a “stick” to shatter three glass cabinet doors in the kitchen. § 87(2)(b) did not know why the officer broke the cabinets as there were only cleaning supplies inside. § 87(2)(b) described the officer as a brown skinned male who stood 5’10” tall, with a medium build, and wearing a baseball cap and blue jeans. § 87(2)(b) was interviewed over six months after the incident and did not have any photos of the damage (BR 02).

Det. Browne did not recall searching the kitchen, denied breaking any glass cabinets, and was not aware of any other officer doing so. Det. Browne was not aware of any broken glass in the apartment. An unspecified amount of cocaine and crack was recovered from the toilet in the 2nd floor bathroom. Det. Browne was not aware of the outcome of the charges. Det. Browne acknowledged that Det. Cardinale and Sgt. Dieugenia were in the home during the incident. Det. Browne could not recall any other officers who were present (**BR 05**).

The investigation submitted a request to Narcotics Bureau Staten Island for DD5s and tactical plans, though this request could not be completed without an unsealing order signed by § 87(2)(b). § 87(2)(b) agreed to submit a signed unsealing order, though he failed to do so despite multiple follow up contact attempts.

§ 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Officer Unidentified**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) and § 87(2)(b) have been named as parties (**BR 09, 10, 11, 12**).
- Det. Browne has been a member-of-service for 13 years and has been named as a subject in 12 additional CCRB complaints and 40 additional allegations, three of which have been substantiated:
 - #201702888 involved two substantiated allegations of frisks. The Board recommended charges for both allegations. The NYPD imposed a forfeiture of four vacation days for one allegation but did not impose a penalty for the other. There was a substantiated allegation of a search. The Board recommended charges. The NYPD imposed the forfeiture of four vacation days.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On September 3, 2024, a notice of claim inquiry was submitted to the NYC Office of the Comptroller. The results will be added to the case file upon receipt.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(g)

Squad No.: 08

Investigator:	Trevor Hackett	Inv. Trevor Hackett	9/9/2024
	Signature	Print Title & Name	Date

Squad Leader:	Ethan De Angelo	IM Ethan De Angelo	9/10/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date